

SENATE No. 607

The Commonwealth of Massachusetts

PRESENTED BY:

Patricia D. Jehlen

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act responding to the threat of invasive species.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	
<i>Michael J. Barrett</i>	<i>Third Middlesex</i>	<i>2/4/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>3/31/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>4/24/2025</i>

SENATE No. 607

By Ms. Jehlen, a petition (accompanied by bill, Senate, No. 607) of Patricia D. Jehlen and Michael J. Barrett for legislation to respond to the threat of invasive species. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 508 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act responding to the threat of invasive species.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 10, as appearing in the 2022 Official Edition, of the General Laws
2 is hereby amended by adding the following sections:-

3 Section 78. As used in section 79, the following words shall have the following meanings
4 unless the context clearly requires otherwise:-

5 “committee”, the invasive species advisory committee established under section 38 of
6 chapter 20;

7 “coordinator”, the statewide invasive species coordinator established under section 36 of
8 chapter 20;

9 “executive office”, the executive office of energy and environmental affairs

“recurring maintenance projects”, invasive species projects that previously received grant funding and require long-term control or management activity.

Section 79.

(a) There shall be a fund to be known as the Invasive Species Trust Fund.

Notwithstanding any general or special law to the contrary, there shall be credited to the fund: (i) any revenue from appropriations or other money authorized by the general court and specifically designated to be credited to the fund, (ii) any gifts, grants, private contributions or investment income earned by the fund’s assets and all other sources and (iii) any monies provided voluntarily from anyone applying for sporting, hunting, fishing and trapping licenses.

(b) The fund, subject to appropriation, shall be received and held in trust solely for: (i) support to the committee, (ii) the executive office’s invasive species office established under section 36 of chapter 20, (iii) development and implementation of the statewide strategic management plan for invasive species pursuant to section 32 of chapter 20, (iv) research and pilot projects at Massachusetts universities, colleges, non-profit organizations and other facilities to test new and emerging technologies for controlling invasive species, and (v) grants awarded under paragraph (d). The fund shall be administered by the coordinator for the purposes of development and implementation of the strategic management plan, research, pilot projects, and grants.

(c) No expenditure from the fund shall cause the fund to be in deficiency at the close of the fiscal year. Money in the fund at the end of the fiscal year shall not revert to the General Fund and shall be available for expenditure in the subsequent year and shall not be subject to section 5C of chapter 29.

(d) A municipality, or group of municipalities, a cooperative invasive species management area, a non-profit or an agency of the state, which desires state assistance to control invasive species, may apply in writing to the invasive species office in a manner prescribed by the office. When the office finds that a proposed invasive species control program aligns with objectives developed in the statewide strategic management plan, and is suitable to eradicate, control, or minimize the effect an invasive species has on the ecosystem under consideration, it may grant an award as determined necessary by the office. Recurring maintenance projects may be awarded grants of up to seventy-five percent the full amount of the annual project cost for a maximum of five years. In approving requests and determining the amount of any grant, the office shall consider the following: (i) the long-range impacts of the strategic management plan developed by the applicant, (ii) the natural resources to be conserved and protected by such control, (iii) the presence of any invasive species prioritized by the committee, (iv) recommendations from the committee, and (v) any impact on endangered, threatened or special concern species listed under chapter 131A.

(e) In prescribing such manner of application for state assistance, the office shall require applicants to develop a management plan and shall offer consultation for development of such plans. The plans shall (i) identify root causes of the existing invasive species problem, (ii) specify control techniques to manage or eradicate the existing infestation, (iii) identify and specify control techniques that will minimize adverse environmental impact to the surrounding area, (iv) specify best management practices to prevent future infestations, and (v) identify the adverse impact of such specified control techniques on any rare species listed under chapter 131A.

(f) The office shall make awards to priority projects to the extent that funds are available. First priority shall be projects to manage incipient infestations of invasive species with the potential for eradication, second priority shall be projects to prevent or control the further spread of an invasive species, and third priority shall be recurring maintenance projects. In establishing priorities for individual projects, the office shall consider the following: (i) public accessibility and recreational uses; (ii) the importance to commercial, agricultural or other interests; (iii) the degree of local interest, including municipal or other support to the project; (iv) local efforts to control invasive species; (v) other considerations affecting feasibility of achieving long-term control including the need for multi-year control efforts; and (vi) necessity or advantage of the proposed work. In all cases, the office shall consider whether the proposed project is included in or compatible with applicable law and regulations, and whether the proposed project furthers goals established by the statewide strategic management plan.

SECTION 2. Chapter 20, as appearing in the Official Edition of the General Laws is hereby amended by adding sections 33 to section 38:-

Section 33. For the purposes of this chapter, the following words shall have the following meanings unless the context clearly requires otherwise:-

“citizen science”, scientific data collection that engages the public;

“committee”, the invasive species advisory committee;

“cooperative invasive species management area”, a regional partnership that focuses on cooperation, coordination and education between departments, tribal governments, stakeholders, Massachusetts universities, private and not-for-profit organizations, other states, the federal government and any other appropriate parties to manage and control regional invasive species;

76 “coordinator”, the statewide invasive species coordinator;

77 “department”, the department of agricultural resources;

78 “introduction”, the intentional or unintentional escape, release, dissemination, or
79 placement of a species into an ecosystem as a result of human activity;

80 “introduction pathway”, the mechanism by which an invasive species enters
81 Massachusetts;

82 “invasive species”, a species that is non-native to the ecosystem under consideration, and
83 whose introduction causes or is likely to cause economic or environmental harm or harm to
84 human health;

85 “Massachusetts Aquatic Invasive Species Management Plan”; a five-year plan, created by
86 the Massachusetts Aquatic Invasive Species Working Group, for aquatic invasive species
87 management in Massachusetts with the goal of implementing a coordinated approach to
88 minimizing the ecological and economic impacts of aquatic invasive species in marine and
89 freshwater environments. The plan was the first comprehensive effort to assess the impacts and
90 threats of aquatic invasive species in Massachusetts and was published in December 2002;

91 “native species”, a species that, other than as a result of an introduction, historically
92 occurred or currently occurs in a particular ecosystem;

93 “naturalized”, the process by which a non-native species, without the aid and benefits of
94 cultivation in Massachusetts, freely and regularly reproduces and persists over time to the point
95 that it becomes established in the ecosystem under consideration;

“non-native species”, a species that is introduced or not naturally occurring, based on the species biology, phylogeny, distribution, and current knowledge about the species, within Massachusetts;

“potentially invasive species”, are non-native species not currently known to be naturalized in Massachusetts, but that can be expected to become invasive within minimally managed habitats within the Commonwealth. As defined here, "species" includes all synonyms, subspecies, varieties, forms, and cultivars of that species unless proven otherwise by a process of scientific evaluation.

“priority conservation area”, an area determined by identifying at all scales the natural and cultural resources at risk from invasive species.

Section 36. (a) The executive office shall establish and maintain a comprehensive invasive species office for the purpose of promoting the ecological integrity of the state’s lands and waterways by controlling invasive species and strategically coordinating management efforts across the state. The office shall focus on each function of invasive species management, including at a minimum, prevention, management, education, and collaboration. The office, with respect to each function, shall: (i) prevent the introduction or re-introduction of invasive or potentially invasive species, (ii) eradicate or control invasive species through early detection and rapid response and best management practices, (iii) target invasive species education to the general public, schools, industries, government agencies, and other organizations, and (iv) facilitate development and support of cooperative invasive species management areas that maximize regional resources and impact.

(b) To coordinate office activities, provide the necessary technical oversight, and staff the office, the department shall appoint a statewide invasive species coordinator. The coordinator shall devote full time and attention to the duties assigned by the department. The coordinator shall be a person with skill and experience in natural resource and invasive species management, botany, and entomology. The coordinator shall be responsible for overall office management, including administration of assigned functions of the invasive species grant program established under chapter 10 of section 79, development of educational materials and workshops, and coordination with other invasive species management activities across the state. The coordinator shall develop the state's invasive species strategic management plan with assistance from the committee. The coordinator shall update the plan or develop a new plan a minimum of once every five years. The coordinator shall have such duties and authority as deemed reasonable by the department to ensure state agency cooperation and support from the committee.

(c) The department shall develop programming to conduct field work to survey for invasive species and review projects funded by the grant program. The monitoring program will, in coordination with other state planning and remediation activities, comprehensively survey designated sections of the state to identify and map invasive species infestations. The monitoring program shall develop partnerships and citizen science programs to ensure comprehensive monitoring of the state.

(d) The office shall coordinate with cities and towns to combat the negative effects of invasive species and increase resources and funding that support city and town-sponsored activities involving invasive species. The office shall identify all federal and private funds available to the state and to private entities to address invasive species and assist state departments, private and non-profit entities to acquire these funds.

Section 37. The comprehensive, statewide strategic management plan shall include prevention, early detection and rapid response, control, enforcement, and education of the public with respect to all taxa of invasive species, as well as create a mission statement establishing the state's position against invasive species. The plan shall, at a minimum:

- (a) describe the impacts and threats of invasive species in the state;
- (b) recommend interagency responsibilities;
- (c) recommend city and town coordination;
- (d) describe state level coordination;
- (e) identify research needs and set research priorities;
- (f) set education priorities;
- (g) identify needs for additional staff positions at state agencies;
- (h) recommend partnerships with private and non-profit entities;
- (i) advance a system for early detection and rapid response;
- (j) establish a centralized framework for sharing invasive species information;
- (k) prioritize invasive species management and advance preparedness;
- (l) recommend state actions to recover ecosystem resilience;
- (m) evaluate the long term success of current state programs and efforts; and

(n) create a guide for uniform administration of section 40 of chapter 131 when alteration of a wetland area for invasive species management requires a permit with the local conservation commission, and recommend ways to improve the permit process to facilitate invasive control

The plan shall evaluate and incorporate, as appropriate, the approved Massachusetts Aquatic Invasive Species Management Plan, and maximize efforts to receive a federal share for work that falls under the objectives of the National Invasive Species Council.

Section 38. (a) There shall be an invasive species advisory committee which shall provide information, advice, and guidance to the invasive species office, including but not limited to providing policy level direction, coordination, and planning among state departments, federal agencies, and international and local initiatives for the control and eradication of invasive species infestations throughout the state and prevent the introduction of potentially invasive species, and providing assistance with the creation of an assessment for non-native species and recommendations for best management practices. The committee shall develop data relative to invasive species and assist in the implementation of and any revision to the strategic management plan. The committee shall recommend new partnerships for the invasive species office.

(b) The committee shall be chaired by the invasive species coordinator and shall meet at the call of the chair or quarterly, but no less than annually. The members of the committee shall not be compensated for their services on the committee but may seek reimbursements out of any funds available for the purpose, for their actual traveling and other expenses necessarily incurred in the performance of the committee's duties, but such reimbursements shall not in any fiscal year exceed the amount set by the chair.

179 (c) The chair shall select up to 16 members with at least one member from each of the
180 following:

181 (1) A statewide conservation organization;

182 (2) A statewide river organization;

183 (3) A representative from the Massachusetts Invasive Plant Advisory Group

184 (4) A representative from a land trust

185 (5) A representative from a native plant organization

186 (6) A representative of an association of conservation commissions;

187 (7) A representative from the Natural Heritage and Endangered Species Program of the
188 department of fish and game;

189 (8) A representative from the Division of Ecological Restoration of the department of fish
190 and game;

191 (9) A representative from the department of agricultural resources;

192 (10) A representative of a plant nursery association;

193 (11) A representative of a landscape association;

194 (12) A representative from the Massachusetts Congress of Lake and Pond Associations;

195 (13) A representative from a Massachusetts biodiversity research institute or university;
196 and;

(14) A veterinarian or biologist conducting research and monitoring of wildlife and plant diseases that are presently infecting flora and fauna in the state.

(d) Selection to the committee shall be for a four year term.

(e) The committee, at the call of the chair, shall hold public hearings for the purpose of fact-finding, receiving public comments, or conducting inquiries concerning invasive species. The committee shall prepare for public review and include in its reports a summary of the comments and recommendations made at the public meetings;

(f) The committee shall report annually at the end of each calendar year on budgetary and other issue regarding invasive species. The information reported shall include, but not be limited to: (i) a summary of the committee's activities; (ii) the performance of the committee's duties; (iii) efforts in the state to identify and manage invasive species; and (iv) budgetary recommendations for invasive species. The report shall be filed with the clerks of the senate and the house, the senate and house committees on ways and means, the joint committee on environment, natural resources and agriculture, and the governor.

(g) The committee, through its member agencies, shall:

(i) maintain oversight of invasive species in the state, and assess the scope and magnitude of the environmental, ecological, agricultural, economic, recreational and social impacts caused by invasive species in the state;

(ii) recommend legislation as well as administrative policies and programs to improve the state's administration and support of invasive species programs and policies;

217 (iii) advise, consult and coordinate invasive species-related efforts with and between state
218 agencies, as well as state, federal, international, and privately organized programs and policies;

219 (iv) identify and prioritize each agency's organizational and resource needs with respect
220 to invasive species;

221 (v) assist state agencies in reviewing the agency performance measures, by the
222 committee's standard, for accountability concerning invasive species actions;

223 (vi) direct invasive species policy for state agencies and ensure that all state agency
224 programs and policies are consistent with the invasive species policies created by the committee;

225 (vii) create and maintain a list of all established categories of invasive species, including
226 banned invasive species, and confirmed sightings of such species in a statewide database that
227 incorporates existing data from agencies, or, if found suitable by the committee, expand current
228 databases and reporting systems to ensure public access to invasive species information and
229 distribution;

230 (viii) establish and maintain a list of current potentially invasive species identified as
231 threats, with focus on those species threatening priority conservation areas, and promulgate
232 agency regulations for such species;

233 (ix) issue an advisory when there is a discovery in the state of a species listed as
234 potentially invasive and not recorded in the state prior to such discovery; the public advisory
235 shall, to the extent information is available, describe in plain language the (i) species location,
236 (ii) waters and land areas negatively affected or expected to be negatively affected by the
237 species, (iii) best management practices for the species provided its location, (iv) introduction

238 pathways, (v) a state plan for eradicating, if possible, or controlling the infestation, and (vi) such
239 information as the committee shall prescribe by regulation or directive;

240 (x) incorporate and expand the Massachusetts Invasive Plant Advisory Group's invasive
241 plant assessment to the extent appropriate for the committee's invasive species control and
242 eradication efforts, and create a yearly evaluation system for listing new species and de-listing
243 others;

244 (xi) review the department's regulations for the Massachusetts prohibited plant list and
245 ensure appropriate administration of the prohibited plant list;

246 (xii) promote use of native species as alternatives to horticulturally and commercially
247 used invasive species and create a list of suitable, tested native alternatives for commonly used
248 invasive species;

249 (xiii) review state agency mandates and commercial interests that call for the
250 maintenance of invasive or potentially invasive species as resources for sport hunting, aesthetic
251 resources, or other values;

252 (xiv) encourage industries and trade organizations to develop and adopt voluntary codes
253 of conduct designed to reduce or eliminate the use and distribution of invasive species, reviewing
254 such voluntary codes of conduct and officially recognizing approved codes;

255 (xv) restrict the sale, purchase, possession, propagation, introduction, importation,
256 transport and disposal of invasive species, and establish grace periods for prohibited species so
257 businesses can plan management of existing stock;

258 (xvi) review the structure of and establish fines and penalties to ensure maximum
259 deterrence for invasive species-related crimes;

260 (xvii) identify and establish new methods to increase revenue for the invasive species
261 trust fund established under section 79 of chapter 10;

262 (xviii) prioritize the actions of the committee based on the needs of the executive office's
263 invasive species office established under section 36, and effectively respond to such needs;

264 (xix) approve by affirmative vote and implement the statewide strategic management
265 plan for invasive species with the invasive species office;

266 (xx) collaborate and coordinate efforts with the federal invasive species council and its
267 national invasive species management plan;

268 (xxi) coordinate a response or promote a statewide position with respect to the impact
269 climate change has on invasion risk in the state and identify ways to translate climate research
270 into invasive species management action;

271 (xxii) develop, foster and maintain partnerships with non-profit organizations to
272 collaborate on projects, policies and programs;

273 (xxiii) adopt rules pursuant to effectuate this chapter; and

274 (xiv) perform any other function necessary to effectuate the purposes of this section.